TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
SEPTEMBER 24, 2018
MINUTES

Green arrows ➡ *in Minutes are hyperlinks to the recording*

Attachment 1—Staff Report

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michele Canon, Susan Bettelli, Lynnette Lynes, Jane Yager-Baumrind

Mr. Belton called the meeting to order at 6:00 pm and reviewed the procedures with the public.

A. Approval of Agenda

▶ *Mr. Wolff moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes July 30, 2018 and August 27, 2018

▶ *Mr. Wood moved for approval of the minutes. Mr. Wolff seconded the motion. All in favor.*

C. Public Comment & General Correspondence

▶ Mr. John Martin stated that based on the sensitive issue concerning the justification for the variance request for item #5 on the agenda, he would like to request that the item be heard last.

▶ Mr. Wolff moved to amend the agenda to move item #5, Case V-27-18, 1448 Cardinal Hill, to the end of the agenda as requested by the applicant. Mr. Cowden seconded the motion. All in favor.

There being no further comments, Mr. Belton continued with the agenda.

D. Administration of Oath

- Mr. Belton administered the oath to those speaking.

E. Business

1. **Case A-4-18, 2164 Beckenham Drive, TM# 594-12-00-363, Appeal of Zoning Administrator's Decision that a basketball goal is an Accessory Use and subject to the setbacks for an Accessory Use as required in §156.111 Location of Accessory Uses. Correspondence. Correspondence**

Ms. Canon stated that the applicant has requested deferral of this request.

- *Mr. Wolff moved for deferral as requested. Mr. Rubin seconded the motion. All in favor.*

2. **Case S-10-18, 637 Atlantic Street, TMS# 532-06-00-075, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.**

- Ms. Canon reviewed staff comments with the Board (attachment 1).

Ms. Kathy Danielson, applicant, stated that she is available for questions.

There being no comments, Mr. Belton closed public comment.

- Mr. Wolff asked what the rear setback is for the property. Ms. Canon answered that it is 25 feet. Mr. Wolff asked if the property meets the setback . Ms. Canon answered that she is not sure without a survey being conducted. Ms. Bettelli stated that it is difficult to determine from the aerial photo. Mr. Wolff suggested that previous approvals should not have been granted and that the ordinance should be clarified as to what is a rear yard and then this should be applied for special exceptions for bed and breakfasts. Ms. Canon stated that there was a change in how a setback is determined and defined, which made some of the properties non-conforming. She stated that this is reviewed when there is new construction and the new setback requirements are applied. Mr. Wolff suggested that this issue should be "cleaned up" regarding how setbacks are applied for corner lots and changes to the ordinance considered. Ms. Canon

answered that this might be an issue that would be addressed through the update of the Comprehensive Plan update.

- *Mr. Wolff moved for approval. Mr. Duke seconded the motion. All in favor.*

3. **Case V-25-18, 770 Chatter Rd., TMS# 559-02-00-222, Appeal from the strict application of §156.303 Residential Use Districts to allow a 12-foot encroachment into required 30-foot rear yard.**

- Ms. Canon reviewed staff comments with the Board (attachment 1).

Ms. Elizabeth Cochran and Mr. Ed Cochran, applicant reviewed the request with the Board.

Mr. Henry Cabiness, 718 Osprey Court, suggested that there is zero impact regarding approval of the request. He stated that he is in favor of the request and suggested that it would increase property values.

There being no further comments, Mr. Belton closed public comment.

Mr. Belton asked about the design and if there was consideration of redesigning the addition, removing the screen porch and reconfiguring it so that the design is compliant within the setbacks. Ms. Cochran answered that reconfiguring the addition would mean no access to the rear yard. Mr. Cochran stated that if reconfigured, it would mean the loss of the common yard and all the windows in the kitchen. He stated that building it to the right would preserve the desired trees. He stated that the screened porch would become increased kitchen space. Ms. Cochran stated that they did consider different options, and this configuration was determined the best design. Mr. Cochran stated that if the home was not set back from the street, a variance would not be needed.

- *Mr. Wood moved for denial of the request. Mr. Carrier seconded the motion. Motion passed on a 5 to 2 vote with Mr. Wolff, Mr. Carrier, Mr. Belton, Mr. Duke, and Mr. Wood in favor; Mr. Rubin and Mr. Cowden opposed.*

4. **Case V-26-18, 901 Harvest Way, TMS# 557-13-00-033, Appeal from the strict application of §156.225 so that applicant does not have to plant replacement trees nor pay into the tree bank in lieu of planting.**

- Ms. Canon reviewed staff comments with the Board (attachment 1).

Mr. Scott Houghton, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed the public comment.

Mr. Wood asked if the same hardship criteria would have to be applied. Ms. Canon answered that it would be a variance request, so the criteria would have to be applied.

Mr. Wolff suggested that because a hazard cannot be anticipated, this would be a variance.

Mr. Belton asked if staff has approved removal of the tree. Ms. Canon answered in the affirmative. Mr. Belton read section 156.223 and asked if a determination was provided. Ms. Canon answered in the affirmative and stated that the applicant is asking for a variance to not have to mitigate the tree because it is a hazard. She stated that staff determined that the tree was not a hazard, but could be removed with replacement.

Mr. Cowden asked if the property has several trees on the lot. Ms. Canon answered in the affirmative.

Mr. Belton stated that the issue is if staff has determined the tree to be a hazard. Ms. Canon answered in the affirmative. Mr. Belton stated that the tree has been approved for removal, but was not deemed to be a hazard.

Mr. Wood suggested that the hazard has not been demonstrated as required by the ordinance.

Mr. Carrier suggested that the removal has been approved and suggested that mitigation should be required.

Mr. Wood suggested that the arborist determination has not sufficiently addressed whether the tree is a hazard.

Mr. Wolff suggested that at this time, the arborist has not determined that the tree is a hazard and the Town arborist has indicated that the tree is in good health.

Mr. Belton suggested that more information from the arborist is needed.

▶ *Mr. Wood moved for denial based on the findings that the arborist has not substantiated that the tree is a hazard in order to waive mitigation. Mr. Carrier seconded the motion. All in favor.*

5. Case V-28-18, 3rd Street, TMS# 514-10-00-134, Appeal from the strict application of §156.303 Residential Use Districts to allow a 14-foot, 10 inch encroachment into required 30-foot rear yard.

▶ Ms. Canon reviewed staff comments with the Board (attachment 1).

Mr. Joel Adrian, designer, and Ms. Margaret Barnett, owner, reviewed the request with the Board. Mr. Adrian distributed a revised site plan and reviewed this with the Board addressing staff's suggestion of relocating the garage and suggested that this option would not work for the property. He suggested that the best option is the site plan originally submitted.

Ms. Katie Shields, 183 4th Avenue, stated that they have a contract to purchase and build on the lot behind the requested lot. She stated that her understanding is that the property would no longer be in a flood zone. She suggested that approval of this would set a bad precedent. She further indicated that they intend to build on their lot within Town standards.

Mr. Ed Lee, Civic Club president, stated that the HOA worked closely with the developer to ensure that variances would not be needed. He suggested that the property should be big enough to build a home that would meet Town standards as well as the HOA requirements.

Mr. Seth Cason, 756 Amenity Park Drive, suggested that a 7,000 square foot house would be preferred over at 2,500 square foot house. He suggested that a smaller house would be less of an impact to the surrounding existing homes and the historic neighborhood.

Mr. Wolff asked when the lot was purchased. Ms. Barnett answered that it was purchased one year ago. Mr. Wolff asked if there has been a change in setbacks since purchase. Ms. Canon answered in the negative.

Mr. Belton asked if the surrounding property allows larger homes. Ms. Canon answered that there is a variety of size of homes in the neighborhood. Mr. Belton stated that this could be a consideration if the size of the home was out of character for the neighborhood.

Mr. Wolff stated that he regularly drives the neighborhood and stated that there is a variety of size of homes.

▶ *Mr. Wolff moved for denial based on the findings of staff report and that the lot was purchased with the current ordinances in place and is a self-inficted hardship. Mr. Duke seconded the motion. All in favor.*

6. **Case V-27-18, 1448 Cardinal Hill, TMS# 580-00-00-108, Appeal from the strict application of §156.102 Height and Size of Buildings and/or Structures to allow a height of 43-foot, 10 inches; the ordinance limits height to 40 feet, and to allow a 3 ½ story house; the Cardinal Hill Planned Development limits residences to 2 ½ stories. Correspondence**

▶ Ms. Canon reviewed staff comments with the Board (attachment 1).

Mr. John Martin, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comments.

Mr. Wolff asked if Mr. Martin is aware that it is not only the height, but also the issue of an additional floor. Mr. Martin answered that he was not aware until after the plans were submitted. Mr. Wolff stated that the subdivision has areas that were previously allowed more height. Mr. Martin agreed and stated that originally he was not aware of this and based his design on those pre-existing heights.

Mr. Wolf asked for the correspondence to be read into the record. Ms. Canon read the correspondence into the record for the Board.

Mr. Martin asked the procedure for approval for the design. He stated that if the variance is not approved, it would mean that the footprint of the home would be larger on the lot and more trees would need to be removed.

Mr. Wolff suggested that a deferral might be appropriate in order for the applicant to contact Cardinal Hill ARB.

Mr. Martin stated that he would like to request a deferral.

▶ *Mr. Wolff moved for deferral of the request in order to allow the applicant to contact Cardinal Hill ARB. Mr. Rubin seconded the motion. All in favor.*

F. Approval of Final Orders

The Board approved final orders.

There being no further business, the meeting adjourned at 7:22 pm.

Submitted by,
L. Lynes
BOZA09242018